

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: July 13, 2026 at 1:30 pm

Rulings Posted: 7/9/26 at 3 pm

#	Case Name	Tentative
202	<i>Sanders vs. California Department of Transportation</i>	Defendant Martin Wagner’s motion to quash service of summons is DENIED. (See Code of Civ. Proc. § 418.10.) Plaintiff met his burden to show service of process was properly effectuated, including reasonable diligence to personally serve Defendant at his usual place of business and on defense counsel prior to substitute service. (Code of Civ. Proc. § 415.20, subd. (b); <i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413 [burden]; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750 [two or three attempts to personally serve defendant at a “proper place” ordinarily qualifies as “reasonable

		diligence”]; <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 389 [a defendant may be “personally” served by delivering a copy of the summons and complaint authorized to accept service on behalf of that defendant]; see also ROA 157, Attachment 5.b.(5); Declaration of Roy K. Suh ¶¶ 2.1.2, 2.1.4, 2.3.) Plaintiff shall give notice.
203	<i>Montgomery vs. HB Healthcare Associates, LLC</i>	Before the Court is the Demurrer filed on 3/26/26 by Defendant HB Healthcare Associates LLC dba Sea Cliff Healthcare Center (Defendant), as to the First Amended Complaint filed on 2/26/26 by Plaintiff Mary Montgomery, individually and as successor-in-interest to decedent Carol Montgomery (Plaintiff). The Demurrer is OVERRULED as to the First Cause of Action. Plaintiff has now added sufficient specificity as to the factual basis for the claim. (FAC ¶¶ 8-12.) The Demurrer is SUSTAINED as to the Fourth Cause of Action, without further leave to amend, as Plaintiff has again failed to plead a factual basis for the constructive fraud claim. No authority supporting any fiduciary duty or confidential relationship in this context has been presented by Plaintiff, and it is not self-evident that such a relationship existed. Nor has Plaintiff adequately alleged facts to show an intent to deceive, or justifiable reliance. Because Plaintiff was previously given leave to amend yet made no meaningful improvements to the claim, Plaintiff appears unable to do so. The 7/13/26 CMC is continued to 8/10/26 at 8:45am in Dept. C24. Defendant shall give notice.